

EMA Advertising Regulations and Guidelines

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1. General Principles

All advertising of medicinal products in the European Union must comply with Directive 2001/83/EC. Advertising to the general public must not give the impression that a medical consultation or surgical operation is unnecessary. Furthermore, advertising must be set out in such a way that it is clear that the message is an advertisement and that the product is clearly identified as a medicinal product.

2. Prohibited Advertising

Advertising of prescription-only medicines to the general public is strictly prohibited across the EU. Over-the-counter (OTC) medicines may be advertised to the public, provided the advertising complies with the requirements of the Directive.

3. Objective and Non-Promotional Information

Information provided must be objective and non-promotional. The distribution of scientific material, even if peer-reviewed, may be considered promotional if it is proactively distributed by a pharmaceutical company to influence prescribing habits.

4. Comparative Advertising

Comparative advertising must be based on relevant, comparable, and verifiable features. It must not be misleading or defamatory. Comparisons must be supported by statistically robust clinical data and must not attempt to discredit competitors.

5. Risk Minimization

Any advertisement must include the necessary information for the correct use of the medicinal product. It must encourage the rational use of the product by presenting it objectively and without exaggerating its properties. The side effects and contraindications must be clearly stated, ensuring a fair balance between the benefits and risks of the medicine.

6. Audio-Visual Advertising

In video or audio advertisements, the spoken text must align perfectly with the on-screen text. Important safety information must not be hidden in fine print or spoken too quickly to be understood by the average consumer.